

SOFTWARE-AS-A-SERVICE SUBSCRIPTION AGREEMENT

Order No.: TSK-SUB-2024-1182

This Software-as-a-Service Subscription Agreement (this “Agreement”), effective as of August 15, 2024 (the “Effective Date”), is entered into by and between **Tasklytic Software Ltd.**, with principal offices at 18 Calderwood Street, Floor 4, Boston, MA 02110 (“Tasklytic”), and **Contoso Marketing, LLC**, 1450 Harborview Avenue, Suite 600, Seattle, WA 98101 (“Customer”). Tasklytic and Customer are each a “party” and together the “parties.”

1. SUBSCRIPTION GRANT

- 1.1 Subject to the terms of this Agreement, Tasklytic grants Customer a non-exclusive, non-transferable right to access and use the **Tasklytic Project Management Platform** (the “Service”) for Customer’s internal business operations.
- 1.2 **Licensed Seats.** The subscription covers **150 named-user seats**. Additional seats may be added mid-term at the then-current per-seat rate, co-terminating with the current Subscription Term.

2. TERM AND RENEWAL

- 2.1 **Initial Subscription Term.** The subscription begins on the Effective Date and runs for **one (1) year**, expiring **August 14, 2025**.
- 2.2 **Automatic Renewal.** This subscription **automatically renews** for successive **one (1) year** terms unless either party gives written notice of non-renewal **at least thirty (30) days** before the end of the then-current term.
- 2.3 The current term expires **August 14, 2026** and will auto-renew on **August 15, 2026** absent timely non-renewal notice. The notice deadline for the upcoming renewal is **July 15, 2026**.

3. FEES

- 3.1 **Subscription Fee.** Customer shall pay **USD \$360 per seat per year**, totaling **USD \$54,000 annually** for 150 seats, invoiced annually in advance.
- 3.2 Payment is due **net forty-five (45) days** from invoice date.

4. PRICE ADJUSTMENT

- 4.1 Upon each renewal, the per-seat subscription fee shall **increase by a fixed seven percent (7%)** over the prior term’s per-seat rate. No CPI or index linkage applies.
- 4.2 Tasklytic will state the renewal pricing on the renewal invoice; no separate advance notice of the increase is required beyond the renewal invoice itself.

5. DATA AND PRIVACY

- 5.1 Customer retains all rights in data it submits to the Service (“Customer Content”).

- 5.2 Tasklytic may process Customer Content to provide, secure, and improve the Service. Tasklytic may use **aggregated and de-identified** usage data for product analytics and benchmarking, provided such data does not identify Customer or any individual.
- 5.3 Tasklytic maintains a published Security Overview describing its controls, including encryption in transit and at rest. **No separate signed Data Processing Addendum is incorporated into this Agreement;** the Security Overview governs data handling.
- 5.4 Tasklytic will notify Customer of a confirmed security incident affecting Customer Content within a reasonable time after confirmation.

6. SUPPORT

Standard support (email + in-app, business hours, next-business-day response) is included. Premium 24/7 support is available as a paid add-on under a separate order.

7. TERMINATION

- 7.1 Either party may terminate for material breach uncured for **thirty (30) days** after written notice.
- 7.2 No refunds are provided for prepaid fees upon termination by Customer for convenience.
- 7.3 Customer may export its Customer Content in a standard format at any time during the term and for **thirty (30) days** following termination.

8. WARRANTIES AND LIABILITY

- 8.1 The Service is provided on a commercially reasonable-efforts basis. Tasklytic's aggregate liability shall not exceed the **fees paid in the prior twelve (12) months**.
- 8.2 Neither party is liable for indirect, incidental, or consequential damages.

9. GOVERNING LAW

This Agreement is governed by the laws of the Commonwealth of Massachusetts, without regard to its conflict-of-laws principles.

10. GENERAL PROVISIONS

- 10.1 **Notices.** All notices under this Agreement shall be in writing and delivered to the addresses set forth above (or such other address as a party designates in writing) by personal delivery, nationally recognized overnight courier, or certified mail, and shall be deemed given upon receipt.
- 10.2 **Entire Agreement; Amendment.** This Agreement, together with its Order(s) and any addenda, constitutes the entire agreement between the parties and supersedes all prior or contemporaneous understandings. It may be amended only by a writing signed by both parties.
- 10.3 **Assignment.** Neither party may assign this Agreement without the other's prior written consent, except to a successor in connection with a merger or sale of substantially all of its assets.
- 10.4 **Severability; Waiver.** If any provision is held unenforceable, the remaining provisions remain in full force and effect. No waiver of any breach shall constitute a waiver of any subsequent breach.

10.5 Force Majeure. Neither party shall be liable for any delay or failure to perform due to causes beyond its reasonable control.

10.6 Counterparts. This Agreement may be executed in counterparts, including by electronic signature, each of which is deemed an original and all of which together constitute one instrument.

Accepted and agreed. The parties have executed this Agreement as of the dates below.

Tasklytic Software Ltd.

Contoso Marketing, LLC

Authorized Signature

Authorized Signature

By:

By:

Name: Priya Nandakumar

Name: Elena Vasquez

Title: Director of Revenue

Title: Director of Operations

Date: August 9, 2024

Date: August 12, 2024